OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

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PRISONER TRANSPORTATION

I. PURPOSE:

A. It is the purpose of this General Order to establish procedures for the transportation of prisoners, prisoners' special needs and what to do in the event that a prisoner escapes from custody.

B. Transporting prisoners is a potentially dangerous function. Therefore, it is the policy of this Department to take necessary precautions while transporting prisoners to protect the lives and safety of others, the public and the person in custody.

II. TRANSPORTATION OPERATIONS PROCEDURES:

A. Search of Prisoners – Prisoners will be frisk searched each time they come into the transporting officer's custody. This includes transports to court appearances or from one lock-up facility to another, incident to arrest, receiving prisoners from another jurisdiction and when removing a prisoner from the holding facility for transport to a medical facility.

B. Search/Inspection of Vehicles – At the beginning and end of each tour of duty, all vehicles regularly used for prisoner transportation shall be searched for contraband and inspected for readiness as follows:

1. All windows shall be in-tact, and outer door latches in proper working order.

2. Rear seat door handles and window controls have been deactivated.

Officers will log that the inspection of their assigned vehicle was completed by placing their DSN in the "Vehicle Inspection" column of the "Daily Mileage-Vehicle Inspection" spreadsheet.

C. Prior to placing a prisoner in the vehicle for transport, the transporting officer shall inspect the interior for weapons and contraband. The vehicle shall be searched again after the prisoner has been delivered to the detention facility or other destination, as soon as practical, but in all cases, before the vehicle is reused for prisoner transport.

D. Observation of Prisoners by Transporting Officers – Officer safety and prisoner security shall be ensured by adhering to the following guidelines:

1. Prisoners shall be under observation while being transported to reduce the opportunity for attack or escape.

2. Exceptions – Officers shall position themselves to prevent escape at:

a. Medical facilities where a physician is conducting surgery or examining a prisoner.

b. Toilet facilities used by a prisoner of the opposite sex.

E. When transporting prisoners for a long distance that requires fuel, the location shall be selected at random by the officer.

F. Transporting officers with prisoners in their custody will not respond to the need for law enforcement services unless there is an imminent threat to a third party and that such action does not present an increased risk to the prisoner.

G. Transporting officers will not allow the prisoners to communicate with family members, friends, or attorneys while being transported. Upon arrival at the destination, opportunity for prisoners to communicate with family, friends, and attorneys will be allowed.

H. The transporting officers will advise the booking officers of any potential medical or security hazards.

I. After the prisoner has been processed and is to be held in a cell, a frisk search shall be completed and all restraining devices shall be removed. If the prisoner represents a danger to himself, restraints may be used while inside the cell.

III. HANDCUFFING OF ARRESTEES:

Officers shall handcuff (double-locked) prisoners with their hands behind their back. If this is not feasible, prisoners may be handcuffed in front; however, leg irons must also be used. Belly chains may also be utilized, if necessary. Prisoners will not be handcuffed or otherwise secured to the transporting vehicle. The legs of prisoners who are combative or who pose a flight risk may be restrained using leg restraints. Prisoners may not be placed in a position that would pose a risk of positional asphyxia. For example, when the detainee is restrained face-up or face-down with pressure on the back or chest. Other situations where an arrestee may have an elevated risk of positional asphyxia include when the restrained detainee violently struggles against personnel's restraint attempts, the restrained detainee is intoxicated, and/or when the restrained detainee has received a TASER or chemical agent deployment.

IV. SEAT BELTS:

All arrestees will wear seat belts while riding in a police car. If an arrested person is physically unable to be restrained in a normal manner, the officer must use his discretion in the safest way to convey the person.

V. SEATING:

With one officer transporting (caged car), the prisoner will ride in the right rear seat. With one officer transporting (no cage in car), the prisoner will ride in the right front seat. When there are two officers (no cage in car), the prisoner will ride in the right rear, the other officer will be behind the driver. With one officer transporting (caged car) two prisoners, both prisoners will ride in the rear seat. Visual contact will be maintained with the prisoners at all times.

VI. DIRECT ROUTE:

Prisoners will be transported using the most direct route from the point of origin to the destination. If a stop is required, Communications will be notified who will then notify the on-duty shift commander.

VII. MEALS:

Meals will be provided to prisoners who are being transported for a long distance that would require several hours. A restaurant will be selected at random by the transporting officer.

VIII. PRISONER ESCAPE:

A. In the event of a prisoner escape, the transporting officer shall immediately notify the dispatcher of an escape and provide a description of the escapee and any other related information. The transporting officer shall notify his/her supervisor and assist in the search for the escapee. The transporting officer will prepare a detailed report.

B. The dispatcher will immediately dispatch an assist unit and supervisor or, if the escape occurs outside of Olivette, notify the appropriate law enforcement agency.

C. The shift commander will initiate all search procedures among agency personnel and other law enforcement agencies as appropriate.

D. The shift commander shall initiate an investigation of the circumstances surrounding the escape and provide a full report with recommendations to the Chief of Police.

IX. SPECIAL TRANSPORT SITUATIONS:

A. Conveying Prisoners To or From Other Agencies

1. Transporting officers picking up prisoners from another jurisdiction shall comply with standard operating procedures pertaining to the policies of this Department.

2. Transporting officers shall comply with the policies and procedures of other jurisdictions while at their facility.

B. Sick or Injured Prisoners

1. At any time prior to, during or after the arrest of an individual that the person is injured or becomes sick, the officer will seek medical attention immediately. Medical attention will be obtained prior to transporting the prisoner to the booking facility, if the injury or sickness occurs prior to the transporting officer's arrival at the facility.

2. The transporting officer must use the same discretion as previously explained in utilizing restraining devices on sick or injured prisoners. If a prisoner is injured or sick enough to be totally incapacitated, restraining devices may not be appropriate. Officer discretion will be used in these particular situations.

C. Prisoners Taken to a Medical Facility

1. Procedures:

a) Paramedics may be contacted to respond and advise if a sick or injured prisoner should be transported to a medical facility.

b) Prisoners that require serious medical attention shall be transported by ambulance to the hospital.

c) Police vehicles will be utilized when directed by a supervisor to transport a prisoner to a medical facility.

d) Pertinent information shall be documented in the incident report.

2. Security:

a) Restraints will be used at the discretion of the officer with regard to the nature of the illness, mental state, mobility, and seriousness of the offense. Exceptions: medical staff or paramedics need freedom of movement for examinations, treatment or other unforeseen circumstance.

b) When the prisoner is transported by ambulance, an officer will ride in the ambulance.

c) The officer shall remain with the prisoner during the examination and treatment. Exception: The physician requests the officer to leave the treatment area. If this occurs, the officer shall position himself in an area to prevent escape.

d) When treatment is completed and the prisoner has been released by medical personnel, he/she will be transported back to confinement.

4. Admission:

a) If a prisoner is admitted for treatment, the transporting officer will advise the Watch Commander.

b) Typically, the prisoner will be released from custody for medical reasons.

c) If the prisoner is being held for a serious offense, the Watch Commander will contact the Chief of Police who may authorize the officer to remain with the prisoner. If need be, the Department schedule will be updated so that officers can be assigned to the hospital in order to maintain custody of the prisoner.

D. Male/Female Arrest/Custody:

1. A male or female officer may be used when transporting a prisoner of the opposite sex, if available.

2. Officers transporting prisoners of the opposite sex will notify the dispatcher of the mileage at the beginning and end of transport.

3. The mileage will be recorded along with the time of departure, time of arrival, destination, and officer(s) transporting, in the computer-aided system (CAD).

E. Juvenile Prisoners:

1. Juvenile prisoners will be transported in the same manner as adult prisoners.

2. Adult and juvenile prisoners will not be transported together.

3. The mileage will be recorded along with the time of departure, time of arrival, destination, and officer(s) transporting, in the Computer-aided Dispatch System (CAD).

F. Handicapped Prisoners:

1. Police vehicles shall be used whenever possible. Physically handicapped prisoners shall be handcuffed normally unless such action would aggravate their condition or cause injury.

2. An ambulance may be utilized when a police vehicle is not practical. Non-ambulatory handicapped prisoners shall be given special care so as not to cause pain during their time in custody. Necessary items such as crutches, wheelchairs, prosthetic devices and medication shall be transported with the prisoner. Police officers shall ride in or follow the ambulance at the discretion of the supervisor.

G. Special Circumstances:

This department will not transport a prisoner to a funeral, to visit a critically ill person, to the reading of a will, etc. Exception: Transportation will be made under court order.

H. Conveying Prisoners to Court or Other Agency:

1. When transporting a prisoner to appear before a judge, the judge shall be advised prior to appearance if the prisoner is considered to be an unusual security risk. The judge will make a judicial determination whether to use restraining devices in Court.

2. When transporting a prisoner, considered to be an unusual medical or security risk, to another agency for holding, that agency shall be advised of the specific risk(s).

X. DOCUMENTATION:

A. Identification of Prisoners Scheduled for Transportation Between Facilities:

1. The transporting officers shall verify identification with the booking records to ensure that the prisoner is the proper person to be moved.

2. Secure proper documentation that will accompany the prisoner being transported may include, if applicable:

a) Charging documents or commitment papers,

b) Criminal records,

c) Prisoner's property, and

d) Medical records.

B. Upon transfer of a prisoner to another agency, officers will ensure that the receiving officer signs the booking sheet acknowledging receipt of the prisoner and his/her property, as well as awareness of any unusual circumstances (i.e. medical, security, high risk issues).

C. In the case of interstate transportation, extradition is handled by the St. Louis County Prosecuting Attorney's office, and they will make arrangements for transportation.

D. Police reports shall indicate if the prisoner is a security risk or possesses any serious or unusual illness.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
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